Comparative Legal Analysis: Texas DTPA and California UCL in the Context of SaaS Denial and Algorithmic Harm

The intersection of state consumer protection laws, cross-jurisdictional digital commerce, and the algorithmic management of Software-as-a-Service (SaaS) platforms presents a highly complex frontier in contemporary civil litigation. This report delivers an exhaustive evaluation of the legal standing, jurisdictional mechanics, and potential recovery models for a Texas-based plaintiff pursuing claims against California-based technology entities—specifically Apple Inc. and Anthropic PBC.

The central factual matrix involves the sale of a premium digital subscription where the provider utilizes undisclosed, server-side algorithmic "rolling windows" to rate-limit access, ultimately resulting in a total service denial (a "hard stop" or "logic loop lock-out"). Furthermore, the analysis explores the compounding severity of this service denial when the digital platform is utilized by the consumer as a compensatory cognitive aid, thereby implicating state and federal disability discrimination statutes. The ensuing legal analysis dissects the statutory frameworks, the procedural hurdles of long-arm jurisdiction and forum selection, and the complex damage modeling required to litigate such claims effectively.

1. Texas Deceptive Trade Practices Act (DTPA) Analysis

The Texas Deceptive Trade Practices-Consumer Protection Act (DTPA), codified in Texas Business and Commerce Code § 17.41 *et seq.*, serves as the primary statutory vehicle for protecting Texas consumers against false, misleading, and deceptive business practices, unconscionable actions, and breaches of warranty.[1] The DTPA is statutorily mandated to be liberally construed to protect consumers and provide efficient, economical procedures to secure such protection.[2] The threshold requirement for invoking the DTPA is establishing "consumer" status, defined as an individual, partnership, or corporation that seeks or acquires goods or services by purchase or lease.[1] A purchaser of a digital SaaS subscription fundamentally qualifies as a consumer under this definition.

1.1 Actionable Misrepresentations under Section 17.46(b)

To successfully state a claim under the DTPA's "laundry list" of deceptive practices, a plaintiff must demonstrate that the defendant's conduct violated specific statutory provisions and that this violation was the producing cause of economic or mental anguish damages.[4] In the context of digital subscriptions, the relevant provisions are found within Tex. Bus. & Com. Code § 17.46(b).[5]

Section 17.46(b)(5) explicitly prohibits "representing that goods or services have sponsorship, approval, characteristics, ingredients, uses, benefits, or quantities which they do not have".[7]

Concurrently, Section 17.46(b)(7) prohibits representing that goods or services are of a "particular standard, quality, or grade... if they are of another".[5] Furthermore, failing to disclose information concerning goods or services known at the time of the transaction, with the intent to induce the consumer into a transaction they otherwise would have avoided, constitutes an actionable omission under Section 17.46(b)(24).[9]

When a technology entity, such as Apple or Anthropic, markets a "Pro" or premium subscription tier, the nomenclature itself inherently represents a specific characteristic, use, and benefit: namely, enhanced, continuous, or elevated access to the algorithmic service compared to free or basic tiers. If the service architecture relies on undisclosed "rolling windows"—a dynamic rate-limiting mechanism where user prompts are calculated against an invisible, continuously shifting time-bracket rather than a predictable, fixed daily or monthly quota—the service fundamentally lacks the represented characteristics.[9] A rolling window algorithm makes it impossible for the end-user to predict when their access will be restored, as their capacity depends on exactly when their previous interactions "fall off" the trailing edge of the algorithmic window.

If a consumer purchases a "Pro" subscription under the reasonable expectation of persistent access, but is subjected to a server-side hard stop that completely denies service without prior transparent disclosure of the mathematical limits of the rolling window, this constitutes an actionable misrepresentation under § 17.46(b)(5) and § 17.46(b)(7).[5] The strategic omission of the precise token-bucket limits or the logic loop thresholds that trigger the hard lock operates as a deceptive inducement. Texas jurisprudence establishes that misrepresentations regarding the functionality, reliability, and continuous availability of software and digital services strictly violate these provisions.[11] For instance, in consumer actions involving software vendors who misrepresented the operational capabilities of their systems, courts have routinely found sufficient evidence to sustain DTPA claims when the software failed to perform the tasks promised during the marketing phase.[11]

To contextualize the specific DTPA violations against the hypothetical software architecture, the following table maps the statutory provisions to the algorithmic mechanics:

DTPA Statutory Provision	**Legal Interpretation**	**Application to Algorithmic SaaS Denial**
§ 17.46(b)(5)	Misrepresenting that services have characteristics, uses, or benefits they do not possess.[8]	Marketing a "Pro" tier implies robust, continuous utility. Imposing a hard stop via an undisclosed rolling window contradicts the core "benefit" of the premium tier.
§ 17.46(b)(7)	Misrepresenting that services are of a particular standard, quality, or grade.[5]	Guaranteeing a premium-grade digital experience, yet delivering a service that routinely initiates absolute lock-outs without

		transparency, degrades the actual service quality.
§ 17.46(b)(24)	Failing to disclose information known at the time of the transaction to induce a purchase.[5]	The technology provider possesses actual knowledge of the algorithmic limiters. Omitting these limits induces the consumer to purchase a subscription they might otherwise reject.

1.2 Algorithmic Unconscionability and Server-Side Hard Stops

Beyond affirmative misrepresentations, the DTPA provides an independent cause of action for any "unconscionable action or course of action".[12] Section 17.45(5) defines an unconscionable action as an act or practice which, to a consumer's detriment, "takes advantage of the lack of knowledge, ability, experience, or capacity of the consumer to a grossly unfair degree".[3]

The evidentiary standard for proving unconscionability in Texas is exceptionally rigorous. The landmark Texas Supreme Court decision in *Chastain v. Koonce* established that the resulting unfairness must be "glaringly noticeable, flagrant, complete and unmitigated".[4] The assessment of unconscionability relies on an objective standard determined by examining the entirety of the transaction from the consumer's perspective. Notably, the specific intent of the defendant or their actual knowledge that the act was unconscionable is irrelevant to establishing baseline liability for the unconscionable act itself.[18]

The deployment of opaque algorithms to manage consumer access inherently creates a massive disparity in knowledge, ability, and capacity between a Silicon Valley technology conglomerate and the average Texas consumer. The consumer possesses zero visibility into the backend server architecture, the load-balancing algorithms, or the dynamic parameter weights that govern the "rolling window." The consumer cannot audit the code, predict the rate-limit triggers, or negotiate the terms of the algorithmic throttling.

When a provider utilizes this absolute informational asymmetry to initiate a complete service denial—despite having accepted premium subscription fees—they are taking advantage of the consumer's technical incapacity. If the logic loop locks the user out continuously without a clear path to remediation, while the provider continues to process recurring payments or maintain the subscription contract, the unfairness transcends mere contractual breach. Under the strict *Chastain* standard, selling a digital service and abruptly severing it through hidden server-side mechanics presents a "glaringly noticeable, flagrant, complete and unmitigated" exploitation of the consumer's inability to comprehend or bypass the algorithmic gatekeeper.[16]

The gross disparity in bargaining power and technical knowledge is the very foundation upon which a DTPA unconscionability claim is built.[18]

1.3 The Mandatory Section 17.505 Demand Letter Protocol

Procedural compliance is an absolute prerequisite in DTPA litigation. Texas Business and Commerce Code § 17.505 mandates that a consumer must provide written notice to the

defendant at least 60 days prior to filing a lawsuit.[20] This statutory prerequisite is not merely a formality; it is a substantive requirement designed to encourage pre-litigation settlement, allow the defendant to inspect the goods or services, and avoid unnecessary judicial intervention.[20] The demand letter must advise the defendant in "reasonable detail" of the consumer's specific complaint and expressly state the calculated amount of economic damages, damages for mental anguish, and expenses, including projected attorneys' fees.[23] The notice must specifically outline the factual background of the transaction and identify the exact sub-provisions of § 17.46(b) that were allegedly violated by the defendant's conduct.[24] The letter should meticulously describe how the undisclosed algorithmic rolling windows and hard stops operate as actionable misrepresentations and unconscionable acts under Texas law.
If a plaintiff files suit without providing the requisite 60-day notice, the defendant's immediate remedy is to file a verified plea in abatement not later than the 30th day after filing their original answer.[21] The court is statutorily obligated to abate (pause) the proceedings until the 60th day after the proper notice is ultimately served.[21] Consequently, a Texas plaintiff must meticulously draft and serve this demand letter via certified mail, return receipt requested, prior to initiating formal litigation against Apple or Anthropic.[23] A strategically drafted DTPA demand letter not only satisfies the statutory prerequisite but also forces the technology entity to officially document their position on their algorithmic rate-limiting practices during the 60-day settlement window.

2. Standing and Jurisdiction: Texas Plaintiff vs. California Defendants

Litigating against major California technology corporations introduces complex jurisdictional friction. The primary obstacles involve establishing the constitutional reach of the Texas long-arm statute to hale foreign corporations into state courts and navigating the enforceability of the defendants' standard Terms of Service (ToS), which invariably include restrictive forum selection clauses designed to force litigation out of plaintiff-friendly states.

2.1 Long-Arm Jurisdiction Over Digital Harms

To subject a nonresident defendant (such as Apple Inc. or Anthropic PBC) to personal jurisdiction in a Texas court, the plaintiff must satisfy the requirements of both the Texas long-arm statute and federal constitutional due process guarantees.[27] The Texas long-arm statute broadly allows state courts to exercise jurisdiction over a nonresident who "commits a tort in whole or in part in this state" and extends its reach precisely as far as federal due process permits.[28]
Federal due process requires that the nonresident defendant purposefully established "minimum contacts" with the forum state and that the exercise of jurisdiction comports with "traditional notions of fair play and substantial justice".[28] In the digital realm, personal jurisdiction analysis frequently invokes the United States Supreme Court's decision in *Calder v. Jones*, which established the "effects test." Under *Calder*, jurisdiction is permissible where a defendant commits an intentional act, expressly aimed at the forum state, causing harm that

the defendant knows is likely to be suffered in the forum state.[29]
However, the mere foreseeability that a digital service might be accessed by a resident in Texas, or that a Texas resident might suffer a digital harm, is insufficient to establish specific personal jurisdiction. The Texas Supreme Court has continuously refined this doctrine, reaffirming the strict "stream-of-commerce-plus" test. In cases such as *BRP-Rotax GmbH & Co. KG v. Shaik*, the court held that a non-Texas company must specifically and purposefully target Texas; it is not enough that the defendant merely foresees its product or service ending up in the state.[32]
When analyzing digital interactions, courts often utilize the sliding scale established in *Zippo Mfg. Co. v. Zippo Dot Com, Inc.*, which assesses the interactivity of a website and the commercial nature of the exchange.[33] Passive websites do not confer jurisdiction, but highly interactive platforms that process subscriptions and exchange data routinely establish sufficient minimum contacts.[33]
Application to Apple and Anthropic:
Establishing general or specific jurisdiction over Apple Inc. in Texas is highly feasible. Apple maintains extensive physical retail locations, operates massive corporate campuses in the state (such as the extensive facilities in Austin), and purposefully directs localized marketing and product distribution directly to Texas residents. A transaction processed through the Apple ecosystem inherently involves a massive web of minimum contacts with the state.
Anthropic PBC, while headquartered in San Francisco and lacking the physical retail footprint of Apple, actively solicits commercial subscriptions across all fifty states through its highly interactive digital platforms.[34] If Anthropic directly processes a premium "Pro" subscription transaction with a Texas resident, collects recurring subscription revenue from a Texas billing address, and delivers its proprietary artificial intelligence data services continuously into the state, this conduct constitutes a purposeful availment of the privilege of conducting business in Texas. Furthermore, the intentional deployment of a server-side logic loop lock-out directed against an IP address or user account known to be localized and billed in Texas satisfies the long-arm requirement that the tortious harm (the DTPA violation and the unconscionable denial of service) occurred, at least in part, within the state.[28]
The following table contrasts the jurisdictional tests relevant to digital harm:

Jurisdictional Doctrine	Legal Standard	Application to SaaS Providers in Texas
Stream-of-Commerce-Plus	Requires purposeful targeting of the forum state, not mere foreseeability of the product reaching the state.[32]	Collecting recurring subscription fees from Texas addresses and maintaining active, continuous data delivery establishes purposeful targeting.
***Calder* Effects Test**	Jurisdiction is proper if intentional conduct is expressly aimed at the forum state,	Activating a server-side hard stop against a known Texas user intentionally localizes the

	causing localized harm.[29]	algorithmic harm within Texas.
***Zippo* Sliding Scale**	Jurisdiction depends on the level of commercial interactivity of the digital platform.[33]	Selling "Pro" subscriptions requires interactive data exchange, billing, and contract execution, satisfying the highest tier of the scale.

2.2 Venue Selection and the Enforcement of Forum Selection Clauses

Despite establishing personal jurisdiction, the most formidable procedural barrier for a Texas plaintiff is the presence of mandatory forum selection clauses embedded within the End User License Agreements (EULAs) or Terms of Service (ToS) promulgated by the defendants. Technology companies aggressively utilize these clauses to centralize litigation in their home jurisdictions, drastically reducing their exposure to diverse state consumer protection laws.

- **Apple Developer Program License Agreement & Media Services:** Apple's consumer and developer agreements routinely mandate that all litigation must take place in the Northern District of California, with exclusive venue designated in the state and federal courts of Santa Clara County, California. These agreements further stipulate that disputes shall be governed exclusively by California law.[35]
- **Anthropic Terms of Service:** Anthropic's Commercial Terms of Service specify a highly restrictive dispute resolution protocol. The terms dictate that any dispute must be determined by final, binding arbitration located in San Francisco, California, utilizing the rules of Judicial Arbitration and Mediation Services, Inc. (JAMS). Like Apple, Anthropic's terms mandate the application of California law.[38]

Texas courts, heavily influenced by federal jurisprudence originating from the United States Supreme Court's decision in *M/S Bremen v. Zapata Off-Shore Co.*, maintain a strong presumption that forum selection clauses are valid and must be enforced.[39] A Texas trial court commits a clear abuse of discretion if it refuses to enforce such a clause unless the party opposing enforcement meets the "heavy burden" of demonstrating that specific exceptions apply.

The recognized exceptions to the mandatory enforcement of a forum selection clause require the plaintiff to clearly show that:

1. Enforcement of the clause would be fundamentally unreasonable or unjust.
2. The clause itself is invalid for reasons of fraud or overreaching.
3. Enforcement would contravene a strong public policy of the forum where the suit was brought.
4. The selected forum would be seriously inconvenient for trial, to the extent that the party would essentially be deprived of their day in court.[40]

2.3 The Public Policy Exception and the DTPA Anti-Waiver Provision

Can a Texas plaintiff leverage the DTPA's strict anti-waiver provision to override Apple or Anthropic's California-centric forum selection clauses under the "strong public policy" exception? Texas Business and Commerce Code § 17.42 explicitly states that any waiver by a

consumer of the provisions of the DTPA is contrary to public policy and is strictly unenforceable and void (unless specifically negotiated in writing with the assistance of independent legal counsel).[43]

However, the Texas Supreme Court has consistently and narrowly interpreted this public policy exception, distinguishing between the *substantive* waiver of statutory rights and the *procedural* selection of a venue. The prevailing jurisprudence holds that a forum selection clause merely dictates *where* a dispute will be heard, not *what* substantive law ultimately applies or what rights are permanently waived.[44]

In *In re Lyon Financial Services*, the Texas Supreme Court addressed a situation where a plaintiff argued that enforcing a Pennsylvania forum selection clause would effectively destroy their Texas usury claim, as Pennsylvania law did not recognize the cause of action for corporations. The court held that a party's inability to assert a specific Texas statutory claim in a foreign jurisdiction does not, by itself, create a sufficient public policy reason to deny the enforcement of a validly executed forum selection clause.[46] Similarly, in *In re AutoNation*, the Texas Supreme Court permitted the enforcement of a Florida forum selection clause even when fundamental Texas public policy regarding the enforceability of non-compete agreements was directly implicated.[48]

To successfully defeat the Santa Clara or San Francisco forum selection clauses, the Texas plaintiff must prove far more than the mere loss of a home-field advantage. The plaintiff must demonstrate that litigating the algorithmic harm in California would effectively deprive them of their day in court entirely, or that the California forum fundamentally eviscerates their substantive remedies in a manner that completely shocks the conscience of Texas public policy. Given the robust enforcement of clickwrap agreements and standard ToS documents in the digital era, overcoming this burden remains a monumental strategic challenge.

2.4 Standing Discrepancies: Texas DTPA vs. California UCL

Understanding why technology companies mandate California venues requires examining the profound differences between the Texas DTPA and California's Unfair Competition Law (UCL), codified at California Business & Professions Code § 17200. If the forum selection clause is enforced and the case is transferred to California, the Texas plaintiff faces a severe reduction in legal leverage and potential recovery.

The UCL broadly prohibits any "unlawful, unfair or fraudulent business act or practice".[50] While seemingly expansive, the actual mechanisms for private recovery under the UCL were severely curtailed by the passage of Proposition 64 in 2004. Proposition 64 was enacted specifically to limit the scope of "private attorney general" lawsuits.[52]

Under the amended UCL, a private plaintiff must establish strict statutory standing by proving they suffered an "injury in fact" and specifically "lost money or property as a result of" the alleged unfair competition.[52] This economic injury requirement is a critical defense for technology businesses facing UCL claims.[52] More importantly, the remedies available under the UCL are strictly equitable in nature. A prevailing plaintiff is generally limited to obtaining injunctive relief (an order forcing the company to cease the practice) and restitution (the return of the specific money acquired by the defendant through the unfair practice).[55]

The comparative table below illustrates the catastrophic loss of leverage a plaintiff suffers if a DTPA claim is subsumed by a UCL framework due to a forum transfer:

Legal Feature	Texas DTPA (Texas Forum)	California UCL (§ 17200) (California Forum)
Standing Threshold	Must qualify as a "Consumer" who acquired goods/services by purchase.[1]	Must demonstrate strict "injury in fact" and specific loss of money or property (Prop 64).[52]
Recoverable Damages	Broad economic damages, consequential damages, and mental anguish.[3]	Strictly limited to equitable relief: restitution and injunctions.[55]
Mental Anguish	Fully recoverable upon proving "knowing" or "intentional" conduct.[3]	Not recoverable. The UCL explicitly excludes all compensatory and punitive tort damages.[55]
Punitive Multipliers	Discretionary treble damages (up to 3x economic and mental anguish).[58]	No punitive, exemplary, or treble damages are permitted under the statute.
Recovery on $20 Sub	Economic ($20) + Mental Anguish (e.g., $50k) x 3 = **$150,060**	Restitution of the subscription fee = **$20**

If forced into California under the UCL, the plaintiff's economic recovery for a deceptive SaaS lock-out is largely restricted to the restitution of the actual subscription fee paid (e.g., a $20 to $100 "Pro" subscription). The UCL's strict limitation on damages wholly prevents the recovery of intangible distress, cognitive harm, lost time, or punitive damages caused by the algorithmic lock-out.[51] Thus, the technology companies' use of EULAs is not merely a preference for local courts; it is a highly effective, substantive liability shield against massive consumer protection judgments. Defeating the forum selection clause to maintain the action in Texas under the DTPA is strategically existential for the plaintiff's case.

3. Comparative Disability Discrimination in Digital Accommodations

The severity of the algorithmic SaaS denial escalates beyond a standard consumer protection dispute when the plaintiff utilizes the artificial intelligence or digital platform as a compensatory cognitive aid. The abrupt, unexplained termination of a cognitive prosthesis via algorithmic rolling windows directly implicates state and federal civil rights and disability statutes. When a technology platform ceases to be a mere convenience and functions as an essential accessibility tool, the legal obligations of the provider expand dramatically.

3.1 Texas Human Resources Code (Chapter 121) vs. The ADA

Chapter 121 of the Texas Human Resources Code (THRC) represents Texas's state-level

statutory equivalent to the federal Americans with Disabilities Act (ADA).[60] The THRC declares a robust state policy dedicated to ensuring that persons with disabilities have the exact same right as the able-bodied to the "full use and enjoyment of any public facility in the state." This mandate includes the affirmative right to reasonable accommodations in policies, practices, and procedures, as well as access to necessary auxiliary aids.[60]

While the THRC's underlying objectives align closely with Title III of the ADA, it provides distinct state-level remedies. Notably, Chapter 121 imposes a statutory civil penalty of $300 per violation, assigning criminal classifications to prohibited activities, and allowing individuals to pursue private actions in state court for localized discrimination.[61]

However, applying Chapter 121 to a purely digital, California-hosted SaaS platform faces substantial jurisprudential hurdles. Texas courts have historically construed the definition of a "public facility" with strict textual adherence, often requiring a nexus to a physical, brick-and-mortar location. In the appellate decision *Livingston v. Beeman*, the Texas court explicitly held that the definition of "public facilities" under Chapter 121 has no exact counterpart in the ADA, dictating that Texas courts must look strictly to the state statutory text rather than importing federal ADA interpretations wholesale.[62]

Because a purely digital cloud architecture or an AI chatbot interface lacks a physical presence in Texas that is openly invited to the public in a traditional sense, categorizing a SaaS environment as a "public facility" under THRC § 121.002(5) requires a novel and aggressive expansion of state law.[65] While there is a growing consensus that commercial websites must comply with accessibility guidelines (such as WCAG 2.2) to accommodate users with disabilities [66], utilizing Chapter 121 to attack backend algorithmic rate-limits remains legally untested and highly vulnerable to dismissal.

3.2 Section 504 Enforcement and "Effective Communication" in the 5th Circuit

A vastly more potent civil rights avenue exists under Section 504 of the Rehabilitation Act of 1973. Section 504 applicability is triggered if the technology entities receive any form of federal financial assistance—a common occurrence for massive entities like Apple or Anthropic, which frequently engage in federal grants, defense contracting, or research subsidies.[68] Section 504 unequivocally mandates that no qualified individual with a disability shall be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving federal financial assistance.[70]

A critical, heavily litigated component of Section 504—which is also mirrored in Title II and Title III of the ADA—is the stringent requirement to ensure "effective communication".[70] Covered entities must take appropriate steps to furnish "auxiliary aids and services" to afford individuals with sensory, manual, or cognitive disabilities an equal opportunity to participate in and enjoy the benefits of a service.[70] The United States Court of Appeals for the Fifth Circuit (which maintains appellate jurisdiction over Texas) enforces these communication mandates vigorously, holding that communication with disabled individuals must be as effective as communication with non-disabled individuals.[76]

3.3 Compensatory Cognitive Aids and the Denial of Service

The regulatory definitions surrounding auxiliary aids and effective communication have evolved to encompass a wide array of advanced technologies. These encompass screen readers, text-to-speech software, real-time captioning algorithms, and complex digital interfaces specifically designed to assist those with sensory, cognitive, neurological, and psychiatric disabilities.[75]

If a plaintiff presenting with an intellectual, psychiatric, or neurodivergent disability relies on a digital platform (such as an advanced AI language model or specialized organizational software) to process complex information, manage severe executive dysfunction, or facilitate daily interpersonal communication, the software ceases to be a mere convenience. Legally and functionally, the platform operates as a compensatory cognitive aid—a digital prosthesis essential for the plaintiff's equitable participation in daily life.

Under the Section 504 framework, when a company like Anthropic or Apple sells a premium service that is subsequently utilized by a consumer as an auxiliary cognitive aid, subjecting that disabled user to an unannounced, algorithmically enforced "hard stop" due to a hidden rolling window constitutes a severe denial of effective communication. Just as a physical public accommodation cannot arbitrarily confiscate a patron's wheelchair or banish a sign language interpreter halfway through a transaction, a digital platform subject to Section 504 cannot abruptly and automatically sever the digital cognitive prosthesis upon which the user relies to interact with the service.

To remain compliant with Section 504 and avoid discriminatory impact, the technology platform would be legally required to engage in an interactive process and implement a "reasonable accommodation" or a "modification of policies, practices, and procedures".[77] In the context of algorithmic rate-limiting, reasonable accommodations could manifest as:

1. Exempting verified disabled users from strict, automated token rate-limits that result in total lock-outs.
2. Providing explicit, highly visible, and predictive warnings before usage limits are reached, allowing the user to manage their cognitive load.
3. Implementing a "graceful degradation" of service (e.g., slowing down processing speeds) rather than initiating an absolute, brick-wall logic loop lock-out.

The total failure to provide such algorithmic accommodations, resulting in the violent severance of the user's cognitive aid, bridges the conceptual gap between a standard consumer protection DTPA claim and actionable, systemic disability discrimination.

The table below contrasts the application of these disability frameworks to digital environments:

Statutory Framework	Jurisdiction	Scope of Application to Digital SaaS	Enforcement Mechanism
THRC Ch. 121	Texas State Law	Narrow. Requires classifying a cloud software environment	Private state action; $300 civil penalty per violation; criminal

		as a "public facility," which Texas courts hesitate to do without physical nexus.[64]	misdemeanor classifications.[61]
Section 504	Federal Law (5th Circuit)	Broad. Applies strictly to any entity receiving federal funds. Focuses on preventing exclusion from programs and ensuring "effective communication".[68]	Federal civil action; injunctive relief; compensatory damages if intentional discrimination is proven.
ADA Title III	Federal Law	Moderate. Requires classifying the digital service as a "place of public accommodation." Circuit courts remain split on web-only applicability without a physical storefront.[78]	Private federal action; limited primarily to injunctive relief and attorneys' fees; no compensatory damages.

4. Damage Modeling: Economic vs. Mental Anguish

If the plaintiff successfully defeats the EULA forum selection clauses, maintains the action in Texas, and establishes liability under the DTPA and/or Section 504, the damage modeling diverges significantly from standard breach of contract metrics. The Texas DTPA is a highly punitive statute designed to heavily penalize corporate scienter and intentional deception.

4.1 Economic Damages and the "Knowing" Violation Multiplier

Under standard contract law, a plaintiff denied a digital subscription service would merely be entitled to a refund of the unfulfilled subscription period. However, under Tex. Bus. & Com. Code § 17.50(b)(1), a prevailing consumer under the DTPA may recover the total amount of "economic damages" found by the trier of fact.[79] Economic damages represent compensatory damages for pecuniary loss, which in this scenario extends far beyond the subscription fee. It encompasses the cost of the subscription, the collateral costs of migrating data to alternative platforms, and any lost professional income directly attributable to the algorithmic service outage.[57]

The true peril for technology defendants under the DTPA lies in its punitive multiplier system, which scales based on the defendant's culpable mental state:

- **"Knowing" Conduct:** If the trier of fact finds that the deceptive act was committed "knowingly," the consumer may recover up to three times the amount of economic

damages (treble economic damages), plus actual damages for mental anguish.[3] The DTPA defines "knowingly" as requiring *actual awareness* of the falsity, deception, or unfairness of the act or practice.[57]

- **"Intentional" Conduct:** If the act was committed "intentionally"—meaning actual awareness coupled with the specific, targeted intent that the consumer act in detrimental reliance on the falsity—the consumer's recovery escalates radically. The plaintiff may recover up to three times the economic damages *and* up to three times the mental anguish damages.[3]

For a Silicon Valley platform managing millions of users, proving "knowing" conduct is highly achievable through targeted electronic discovery. The implementation of algorithmic rate limits, mathematical rolling windows, and automated server-side hard stops are not accidental occurrences or system glitches; they are meticulously coded engineering decisions designed to optimize server load, throttle heavy users, and reduce compute costs. If internal corporate documentation, Slack logs, or Git commits reveal that engineers knew the frontend user interface failed to warn consumers about these backend caps, actual awareness of the deceptive omission is legally established. This evidentiary finding immediately triggers the treble economic damage multiplier.

$$Damages_{Knowing} = (3 \times \text{Economic Damages})$$

4.2 Mental Anguish and the "Substantial Disruption" Standard

Recovering mental anguish damages in Texas requires clearing a remarkably high evidentiary threshold. Following the Texas Supreme Court's stringent jurisprudence in *Parkway Co. v. Woodruff*, a plaintiff cannot simply rely on conclusory, self-serving statements of being upset, frustrated, or angry over a broken contract.[58]

To survive a directed verdict on mental anguish, the plaintiff must present direct, compelling evidence regarding the "nature, duration, and severity" of the mental anguish. The evidence must establish a "substantial disruption in the plaintiff's daily routine" or demonstrate a "high degree of mental pain and distress that is more than mere worry, anxiety, vexation, embarrassment, or anger".[18] Texas courts have expressed increasing concern regarding over-compensation in consumer cases, routinely striking down massive mental anguish awards where the plaintiff failed to prove that the emotional distress physically or fundamentally altered their daily existence.[58]

While a standard consumer might experience mere "vexation" or temporary "anger" when a software subscription abruptly locks them out, the calculus shifts entirely for a disabled plaintiff using the service as an integrated cognitive aid. If the plaintiff relies on the AI platform or digital software to process daily communications, mitigate neurodivergent executive dysfunction, or manage complex psychiatric disabilities, the sudden, algorithmic denial of this service natively and objectively induces a "substantial disruption of daily routine".[84]

For a disabled user, the disruption is not a mere commercial inconvenience; it constitutes the sudden, non-consensual removal of a psychological and operational crutch. To meet the heavy

evidentiary burden demanded by Texas courts, the plaintiff should present corroborating, third-party testimony from medical professionals, psychologists, colleagues, or family members detailing the subsequent behavioral impact, the resulting inability to complete necessary daily tasks, or any required medical intervention directly subsequent to the algorithmic lock-out.[80]

If the jury accepts this evidence and further finds that the technology entity acted *intentionally*—by ruthlessly designing an automated system that locks out high-dependency users to save compute costs without any regard for their reliance on the tool—the ultimate recovery model scales aggressively, punishing the corporate scienter:

$$Damages_{Intentional} = 3 \times (\text{Economic Damages}$$

The following table summarizes the required proof and recovery thresholds under the DTPA:

Culpable Mental State	Statutory Definition / Burden of Proof	Authorized DTPA Recovery
Strict Liability (Baseline)	No intent required. Act simply occurred and caused damage.	Actual Economic Damages + Attorneys' Fees.
"Knowingly"	*Actual awareness* of the deception or unfairness of the rolling window.[57]	Up to 3x Economic Damages + Actual Mental Anguish Damages.
"Intentionally"	Actual awareness *plus* specific intent to deceive or harm the consumer.[59]	Up to 3x Economic Damages + Up to 3x Mental Anguish Damages.
Mental Anguish Threshold	Must prove "substantial disruption of daily routine" (Parkway standard).[18]	Unlock compensatory and treble emotional distress awards.

5. Strategic Synthesis and Conclusions

Litigating a highly technical SaaS denial-of-service claim initiated by a Texas resident against a California technology conglomerate requires navigating a perilous gauntlet of restrictive contract law, punitive state consumer protection statutes, and federal disability rights mandates. The fusion of algorithmic backend management with consumer-facing subscription marketing creates novel avenues for liability that stretch traditional jurisprudence.

An exhaustive analysis of the statutory frameworks and case law yields the following determinative insights and strategic realities:

1. **The Algorithmic Deception is Actionable:** Enforcing undisclosed "rolling windows" and initiating absolute hard stops on a paid "Pro" subscription squarely fits the Texas DTPA definitions of deceptive misrepresentations of characteristics under § 17.46(b)(5) and unconscionable courses of action under § 17.45(5). The exploitation of the consumer's technical blindness to backend server constraints, while continuously charging premium

fees, represents a gross disparity in capacity that satisfies the *Chastain* standard for unconscionability.

2. **The Venue Battle is Existential:** Entities like Apple and Anthropic will immediately move to transfer venue to California, relying heavily on their respective forum selection clauses and arbitration mandates. Because Texas public policy heavily favors the freedom of contract and the enforcement of these clauses, the plaintiff faces a massive procedural hurdle. The plaintiff must construct a compelling argument that transferring the case to California's UCL framework—which strips away treble damages and eliminates mental anguish recovery due to Proposition 64—essentially deprives a disabled Texas consumer of their substantive day in court and weaponizes the EULA to shield intentional corporate deception.
3. **The Civil Rights Nexus is the Shield Penetrator:** Elevating the software lock-out from a mere breach of consumer contract to a violation of Section 504 of the Rehabilitation Act provides the most robust mechanism for demonstrating profound, actionable harm. By successfully framing the digital platform as a compensatory cognitive aid utilized by a qualified individual with a disability, the algorithmic hard stop transforms into an active, discriminatory denial of "effective communication." This federal civil rights framing bypasses the limitations of the Texas Human Resources Code and justifies substantial mental anguish damages by objectively satisfying the Texas requirement for a "substantial disruption of daily routine."
4. **Procedural Imperatives Dictate Success:** Before any formal litigation commences, the plaintiff must execute a highly specific, statutorily compliant 60-day demand letter under DTPA § 17.505. This letter must meticulously detail the algorithmic deception, the specific disability impact, and provide an exact calculation of treble economic and mental anguish damages. Properly executing this demand letter not only avoids mandatory case abatement but sets the procedural trap for maximum statutory recovery, forcing the technology entity to officially defend its opaque algorithmic throttling practices.

Works cited

1. Consumer Fraud Lawyers | Consumer Protection & DTPA - Nunis & Associates, accessed April 16, 2026, https://www.nunislaw.com/consumer-protection-deceptive-trade-practices-act/
2. COMMENT:The DTPA's Professional Services Exemption: Let 'em Be Doctors and Lawyers and Such*, * The Author would like to - Whitaker Chalk, accessed April 16, 2026, https://www.whitakerchalk.com/wp-content/uploads/2019/10/COMMENT_The-DTPA_s-Professional-Services-Exemption.pdf
3. Texas Deceptive Trade Practices-Consumer Protection Act, accessed April 16, 2026, https://www.templelawoffice.com/wp-content/uploads/sites/1501901/2020/01/Texas-Deceptive-Trade-Practices.pdf
4. Deceptive Trade Practices - Consumer Protection Act - SMU Scholar, accessed April 16, 2026,

https://scholar.smu.edu/cgi/viewcontent.cgi?article=1954&context=smulr
5. STATE OF TEXAS, Plaintiff, v. SOUTHWESTERN PUBLIC SERVICE COMPANY, d/b/a XCEL ENERGY, Defendant., accessed April 16, 2026, https://www.texasattorneygeneral.gov/sites/default/files/images/press/Petition_5.pdf
6. INSURANCE - The Portal to Texas History, accessed April 16, 2026, https://texashistory.unt.edu/ark:/67531/metapth639062/m2/1/high_res_d/UNT-0023-0008.pdf
7. Fourth Court of Appeals - U.S. Case Law, accessed April 16, 2026, https://cases.justia.com/texas/fourth-court-of-appeals/04-12-00368-cv.pdf?ts=1396148384
8. Case 2:24-cv-10546-BRM-KGA ECF No. 30, PageID.3491 Filed 11/25/24 Page 1 of 389 - Lieff Cabraser, accessed April 16, 2026, https://www.lieffcabraser.com/pdf/Dkt.30-SecondAmendedComplaint2024.11.25.pdf
9. Exhibit B, accessed April 16, 2026, https://files.lbr.cloud/public/2025-06/Texas%27s%20second%20amended%20petition.pdf?VersionId=pk5vqR6sodKXeq2u62TEvynpu1UQYg1V
10. Samuel Avila and Nilsa Avila, d/b/a Mundo Latino v. The State of Texas--Appeal from 7th District Court of Smith County - Justia Law, accessed April 16, 2026, https://law.justia.com/cases/texas/twelfth-court-of-appeals/2008/8473.html
11. FIELDTECH AVIONICS INSTRUMENTS INC v. COMPONENT CONTROL COM INC USA (2008) - FindLaw Caselaw, accessed April 16, 2026, https://caselaw.findlaw.com/court/tx-court-of-appeals/1256874.html
12. UNITED STATES DISTRICT COURT EASTERN DISTRICT OF MICHIGAN SOUTHERN DIVISION IN RE: FCA US LLC MONOSTABLE ELECTRONIC GEARSHIFT L - Lockridge Grindal Nauen PLLP, accessed April 16, 2026, https://www.locklaw.com/wp-content/uploads/Fiat-Second-Amended-Consolidated-Master-Class-Action-Complaint-In-re-FAC-US-LLC-Monstable-Electronic-Gearshift-Litigation-.pdf
13. ORTIZ v. COLLINS (2006) - FindLaw Caselaw, accessed April 16, 2026, https://caselaw.findlaw.com/court/tx-court-of-appeals/1145584.html
14. Consumer Protection - Texas A&M Law Scholarship, accessed April 16, 2026, https://scholarship.law.tamu.edu/context/student-scholarship/article/1007/viewcontent/Consumer_Protection.pdf
15. STATE FARM LLOYDS v. NICOLAU | No. 94-0287. | Tex. | Judgment | Law | CaseMine, accessed April 16, 2026, https://www.casemine.com/judgement/us/5914bc35add7b0493479b29f
16. Chastain v. Koonce :: 1985 :: Supreme Court of Texas Decisions - Justia Law, accessed April 16, 2026, https://law.justia.com/cases/texas/supreme-court/1985/c-3478-0.html
17. LATHAM v. CASTILLO (1998) - FindLaw Caselaw, accessed April 16, 2026, https://caselaw.findlaw.com/court/tx-supreme-court/1130952.html
18. Deceptive Trade Practices, accessed April 16, 2026, https://www.texaslegalbrains.com/texas-causes-of-action/deceptive-trade-practi

ces
19. A Consumer Update: Recent Developments under the Texas Deceptive Trade Practices Act., accessed April 16, 2026, https://commons.stmarytx.edu/cgi/viewcontent.cgi?article=1883&context=thestmaryslawjournal
20. What steps should a consumer take before filing a Texas DTPA claim?, accessed April 16, 2026, https://www.woodlands.law/texas-dtpa/steps-before-filing/
21. Texas Business and Commerce Code - BUS & COM § 17.505. Notice; Inspection, accessed April 16, 2026, https://codes.findlaw.com/tx/business-and-commerce-code/bus-com-sect-17-505/
22. Demand Letters That Hold Power Under the Texas Deceptive Trade Practices Act (DTPA), accessed April 16, 2026, https://kjm.law/texas-deceptive-trade-practices-act-demand-letter/
23. Rethinking the Sixty-Day Notice Letter in Texas | Property Insurance Coverage Law Blog, accessed April 16, 2026, https://www.propertyinsurancecoveragelaw.com/blog/rethinking-the-sixtyday-notice-letter-in-texas/
24. Deceptive Trade Practices Act: Protections for Consumers - Texas Law Help, accessed April 16, 2026, https://texaslawhelp.org/article/deceptive-trade-practices-act-protections-for-consumers
25. Deceptive Trade Practices-Consumer Protection Act - SMU Scholar, accessed April 16, 2026, https://scholar.smu.edu/cgi/viewcontent.cgi?article=1652&context=smulr
26. IN THE UNITED STATES DISTRICT COURT NORTHERN DISTRICT OF TEXAS DALLAS DIVISION RALPH V. CLARK AND § KAREN C. CLARK, § § Plain - GovInfo, accessed April 16, 2026, https://www.govinfo.gov/content/pkg/USCOURTS-txnd-3_14-cv-02933/pdf/USCOURTS-txnd-3_14-cv-02933-0.pdf
27. IN THE SUPREME COURT OF TEXAS, accessed April 16, 2026, https://www.txcourts.gov/media/1386416/140186cx.pdf
28. opinion of the Court - Texas Judicial Branch, accessed April 16, 2026, https://www.txcourts.gov/media/1309504/140186.pdf
29. Determining Internet Jurisdiction - The CPA Journal Archive, accessed April 16, 2026, http://archives.cpajournal.com/2003/0703/features/f072403.htm
30. Personal Jurisdiction in the Shadow of the First Amendment - California Law Review, accessed April 16, 2026, https://www.californialawreview.org/print/jurisdiction-first-amendment
31. PAVLOVICH v. DVD (2001) - FindLaw Caselaw, accessed April 16, 2026, https://caselaw.findlaw.com/ca-court-of-appeal/1071993.html
32. Texas Supreme Court Reaffirms That Non-Texas Companies Must “Target Texas” To Be Subject To Personal Jurisdiction - Gibson Dunn, accessed April 16, 2026, https://www.gibsondunn.com/texas-supreme-court-reaffirms-that-non-texas-companies-must-target-texas-to-be-subject-to-personal-jurisdiction/

33. Doe v. Geller and Personal Jurisdiction Over Internet Activities - Texas A&M Law Scholarship, accessed April 16, 2026, https://scholarship.law.tamu.edu/cgi/viewcontent.cgi?article=1354&context=lawreview
34. Reddit Sues Anthropic Over AI Use of User Content - DDG | Avocats, accessed April 16, 2026, https://www.ddg.fr/actualite/reddit-inc-v-anthropic-pbc---legal-action-over-the-unauthorized-use-of-user-generated-content-in-ai-training
35. Apple Developer Agreement, accessed April 16, 2026, https://developer.apple.com/support/downloads/terms/apple-developer-agreement/Apple-Developer-Agreement-20250318-English.pdf
36. Apt Systems, Inc. et al v. Apple Inc., No. 3:2022cv00524 - Document 32 (N.D. Cal. 2022), accessed April 16, 2026, https://law.justia.com/cases/federal/district-courts/california/candce/3:2022cv00524/391081/32/
37. IN RE: APPLE INC. (2020) - FindLaw Caselaw, accessed April 16, 2026, https://caselaw.findlaw.com/court/us-federal-circuit/2063730.html
38. Anthropic on Bedrock - Commercial Terms of Service, accessed April 16, 2026, https://www-cdn.anthropic.com/6b68a6508f0210c5fe08f0199caa05c4ee6fb4dc/Anthropic-on-Bedrock-Commercial-Terms-of-Service_Dec_2023.pdf
39. Franchise Law - Dallas - SMU Scholar, accessed April 16, 2026, https://scholar.smu.edu/cgi/viewcontent.cgi?article=2230&context=smulr
40. In Re: Bambu Franchising LLC, Bambu Desserts and Drinks, Inc., and Bambu IP, LLC Appeal from 298th Judicial District Court of Dallas County - Justia Law, accessed April 16, 2026, https://law.justia.com/cases/texas/fifth-court-of-appeals/2017/05-17-00690-cv.html
41. TEX. CASE LAW ---> FORUM SELECTION AND VENUE | FORUM INCONVENIENS | MANDAMUS - Texas Opinions, accessed April 16, 2026, http://www.texas-opinions.com/law-forum-selection.html
42. MEMORANDUM OPINION - U.S. Case Law, accessed April 16, 2026, https://cases.justia.com/texas/thirteenth-court-of-appeals/13-12-00151-cv.pdf?ts=1396146191
43. Business & Commerce Code Chapter 17 - Texas Constitution and Statutes, accessed April 16, 2026, https://statutes.capitol.texas.gov/Docs/BC/htm/BC.17.htm
44. Texas Insurance Law Newsbrief - February 10, 2026, accessed April 16, 2026, https://www.mdjwlaw.com/newsroom/newsbriefs/texas-insurance-law-newsbrief-february-10-2026
45. US corporate governance: 2025 year-end review | Herbert Smith Freehills Kramer | Global law firm, accessed April 16, 2026, https://www.hsfkramer.com/insights/2026-02/corporate-governance-2025-year-end-review
46. THE USE OF ARBITRATION, FORUM-SELECTION, AND JURY-WAIVER CLAUSES IN TRUST AND ESTATE LITIGATION IN TEXAS DAVID F. JOHNSON, For, accessed April 16, 2026,

https://www.fiduciarylitigator.com/files/2019/12/Arbitration-Forum-Selection-Jury-Waiver-Clauses-in-Trust-and-Estate-Litigation_Paper.pdf
47. law-usury - Texas Opinions, accessed April 16, 2026, https://www.texas-opinions.com/law-usury.html
48. Drafting Enforceable Non-Compete Agreements for a Remote Workforce, accessed April 16, 2026, https://www.hchlawyers.com/blog/2022/may/drafting-enforceable-non-compete-agreements-for-/
49. Contractual Clauses That Impact Disputes David F. Johnson Winstead PC 300 Throckmorton, Suite 1700 Fort Worth, TX 76102 (817) 4 - The Fiduciary Litigator, accessed April 16, 2026, https://www.fiduciarylitigator.com/files/2017/04/TBA-Contractual-Clauses-Paper.pdf
50. Defenses to a Section 17200 Unfair Competition Law Claim in California, accessed April 16, 2026, https://www.bonalaw.com/insights/legal-resources/defenses-to-a-section-17200-unfair-competition-law-claim-in-california
51. Organizations May Sue Employers Based On Time Spent Opposing Unfair Competition, accessed April 16, 2026, https://www.proskauer.com/blog/organizations-may-sue-employers-based-on-time-spent-opposing-unfair-competition-blog
52. Navigating the Nuances of California's Unfair Competition Law - Keller/Anderle, accessed April 16, 2026, https://kelleranderle.com/navigating-the-nuances-of-californias-unfair-competition-law/
53. California Supreme Court Ruling on UCL Standing Requirement May Open the Floodgates to Frivolous Suits - Mayer Brown, accessed April 16, 2026, https://www.mayerbrown.com/-/media/files/perspectives-events/publications/2009/07/california-supreme-court-ruling-on-ucl-standing-re/files/nadolencoparasharamiranlettpdf/fileattachment/nadolenco-parasharami-ranlett.pdf
54. Organizations May Sue Employers Based On Time Spent Opposing Unfair Competition, accessed April 16, 2026, https://calemploymentlawupdate.proskauer.com/2023/07/organizations-may-sue-employers-based-on-time-spent-opposing-unfair-competition/
55. IN KWIKSET, THE CALIFORNIA SUPREME COURT LOWERS THE BAR TO GAIN STANDING FOR UNFAIR COMPETITION CLAIMS, BUT MAY HAVE RAISED THE - Arnold & Porter, accessed April 16, 2026, https://www.arnoldporter.com/en/perspectives/advisories/2011/02/california-supreme-court-lowers-bar-for-ucl-stan__
56. California's Unfair Competition Law and Consumers Legal Remedies Act 2024 Annual Overview - Steptoe, accessed April 16, 2026, https://www.steptoe.com/a/web/4DY8ntSCUCGzKTG7juucUL/a5MEfa/18155-californias-unfair-competition-law-002.pdf
57. 12, accessed April 16, 2026, https://ble.texas.gov/A_2011_Feb_Q12
58. Texas Deceptive Trade Practices Act: Comprehensive Enforcement Guide,

accessed April 16, 2026, https://legalrepusa.com/blog/texas-deceptive-trade-practices-act-comprehensive-guide
59. When can a consumer recover treble damages under the Texas DTPA?, accessed April 16, 2026, https://www.woodlands.law/texas-dtpa/treble-damages/
60. 121.002 - Texas Constitution and Statutes, accessed April 16, 2026, https://statutes.capitol.texas.gov/GetStatute.aspx?Code=HR&Value=121.002
61. Americans with Disabilities Act (ADA) - Office of the Texas Governor, accessed April 16, 2026, https://gov.texas.gov/organization/disabilities/ada
62. Brad Livingston, in his Official Capacity as the Executive Director of the Texas Department of Criminal Justice, Appellant v. Laura Beeman and Janet Lock, Appellees (2013) - FindLaw Caselaw, accessed April 16, 2026, https://caselaw.findlaw.com/tx-court-of-appeals/1639788.html
63. Access Litigation in Texas Under the Americans with Disabilities Act and its Texas Companion - Texans for Lawsuit Reform Foundation, accessed April 16, 2026, https://tlrfoundation.org/foundation_papers/access-litigation-in-texas-under-the-americans-with-disabilities-act-and-its-texas-companion/
64. opinion of the Court - Texas Judicial Branch, accessed April 16, 2026, https://www.txcourts.gov/media/1008510/130867.pdf
65. SILGUERO v. CSL PLASMA INCORPORATED (2019) | FindLaw, accessed April 16, 2026, https://caselaw.findlaw.com/court/tx-supreme-court/2007490.html
66. Your Guide To ADA Compliance In Texas - Accessibility Checker, accessed April 16, 2026, https://www.accessibilitychecker.org/blog/ada-compliance-in-texas/
67. Website ADA Accessibility Compliance in Texas - Skynet Technologies, accessed April 16, 2026, https://www.skynettechnologies.com/blog/website-ada-compliance-in-texas
68. Americans with Disabilities Act Title III Regulations | ADA.gov, accessed April 16, 2026, https://www.ada.gov/law-and-regs/regulations/title-iii-regulations/
69. What the DOD-Anthropic Dispute Means for Government Contractors and Businesses That Work With the Federal Government - Hoyer Law Group, accessed April 16, 2026, https://www.hoyerlawgroup.com/what-the-dod-anthropic-dispute-means-for-government-contractors-and-businesses-that-work-with-the-federal-government/
70. Effective Communication and the ADA - Legal Briefings, accessed April 16, 2026, https://www.adagreatlakes.org/Publications/Legal_Briefs/BriefNo25_EffectiveCommunication_andADA.pdf
71. Section 504 - Texas Project First, accessed April 16, 2026, https://texasprojectfirst.org/section-504/
72. Diagnosing Accessibility Issues and Inequality for Patients with Disabilities Within the American Health - The University of Memphis, accessed April 16, 2026, https://www.memphis.edu/law/documents/book4_moss.pdf
73. Nondiscrimination on the Basis of Disability in Programs or Activities Receiving Federal Financial Assistance, accessed April 16, 2026, https://www.federalregister.gov/documents/2024/05/09/2024-09237/nondiscrimin

ation-on-the-basis-of-disability-in-programs-or-activities-receiving-federal-financial
74. An Equal Chance to Succeed: Challenging Barriers for Disabled People on Probation and Parole - Georgetown Law, accessed April 16, 2026, https://www.law.georgetown.edu/american-criminal-law-review/wp-content/uploads/sites/15/2025/08/GT-ACLR250048.pdf
75. ADA Handbook - Judicial Council of Georgia, accessed April 16, 2026, https://jcaoc.georgiacourts.gov/wp-content/uploads/2024/05/ADA-Judicial-Handbook-2017_Oct-Update.pdf
76. Discrimination on the Basis of Disability in Health and Human Service Programs or Activities, accessed April 16, 2026, https://www.regulations.gov/document/HHS-OCR-2023-0013-0001
77. Americans with Disabilities Act Advancing Court Accessibility for Individuals with Disabilities Comprehensive Guide, accessed April 16, 2026, https://appellatecourtclerks.org/wp-content/uploads/2025/12/Albuqueque-Master-File.pdf
78. Is a Website Subject to Title III of the ADA: Why the Text Applies to Only Websites "Of" a Place of Public Accommodation - Texas A&M Law Scholarship, accessed April 16, 2026, https://scholarship.law.tamu.edu/journal-of-property-law/vol8/iss2/5/
79. Texas Deceptive Trade Practices Act - Journal of Consumer & Commercial Law, accessed April 16, 2026, http://www.jtexconsumerlaw.com/V15N1/V15N1_Remedies.pdf
80. Question 6 – July 2014 – Selected Answer 1 I. Pat can assert claims under the Deceptive Trade Practices Act for a "laundry, accessed April 16, 2026, https://ble.texas.gov/A_2014_July_Q6
81. Treble Damages! - Gray Becker, P.C., accessed April 16, 2026, https://www.graybecker.com/blog/treble-damages/
82. RECENTDEVELOPMENTS - Journal of Consumer & Commercial Law, accessed April 16, 2026, http://www.jtexconsumerlaw.com/v28n3/JCCL_V28N3_DTPA.pdf
83. Unconscionable Conduct by Attorneys Under DTPA: Castillo v. Latham - CaseMine, accessed April 16, 2026, https://www.casemine.com/commentary/us/unconscionable-conduct-by-attorneys-under-dtpa:-castillo-v.-latham/view
84. Patel v. Hussain | NO. 14-14-00459-CV | Tex. App. | Judgment | Law | CaseMine, accessed April 16, 2026, https://www.casemine.com/judgement/us/5914ad50add7b04934741cbe
85. Question 11 – February 2013 – Selected Answer 1, accessed April 16, 2026, https://ble.texas.gov/A_2013_Feb_Q11